

****01.11.2021****

****Fine for GDPR Violation****

The National Supervisory Authority completed on October 14, 2021, an investigation into the operator IKEA ROMÂNIA SA, following which it was found that there was a violation of the provisions of Article 32 paragraph (1) letter b) and paragraph (2) of the General Data Protection Regulation.

As such, the operator was sanctioned administratively with a fine in the amount of 4948.80 lei (the equivalent of 1,000 EURO).

The investigation was initiated as a result of the transmission by IKEA ROMÂNIA SA to the National Supervisory Authority for Personal Data Processing of a notification of a personal data security breach.

Thus, according to the mentions in the notification form, IKEA ROMÂNIA SA organized a drawing contest in which the children of IKEA Family members participated. Participants uploaded on the online platform dedicated to members their own drawings, along with the participation forms, which contained their personal data as well as that of their parents/legal guardians, including their consent. For the voting of the best drawing, the children's drawings were published in error on the online platform, along with the personal data contained in the participation forms.

At the time of the investigation, it was found that the security incident led to the unauthorized disclosure of the personal data of IKEA Family members (the names, surnames, and ages of minor individuals, the names, surnames, city, country, email, IKEA Family member number, and the handwritten signature of the parent/legal guardian), on the online platform dedicated to IKEA Family members in Romania, accessible only to them, for approximately 40 hours, affecting a total of 114 individuals (half of whom were minors).

As such, it was found that this incident led to the compromise of data confidentiality, in violation of the provisions of Article 32 paragraph (1) letter b) and paragraph (2) of the GDPR.

In this context, we emphasize that, according to recital 38 of the GDPR, "Children need specific protection of their personal data, as they may be less aware of the risks, consequences, guarantees in question, and their rights regarding the processing of personal data. This specific protection should apply, in particular, to the use of children's personal data for marketing purposes or for creating personality or user profiles and to the collection of personal data concerning children when using services directly offered to children."

****Legal and Communication Department****

****N.S.A.P.D.C.P.****